

26CHCP00220 26CHCP00220

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-06

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Case Number: 26CHCP00220 Hearing Date: August 6, 2026 Dept: F46

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PETITION FOR ORDER REQUIRING RECONVEYANCE OF DEED OF TRUST AND FOR AUTHORIZATION FOR COURT CLERK TO EXECUTE RECONVEYANCE IF RESPONDENTS FAIL TO COMPLY

Petition filed on June 11, 2026.

MOVING PARTY: Satenik Nshanyan, Trustee of the Nshanyan Living Revocable Trust

RESPONDING PARTY: Premier America Credit Union, Dovenmuehle Mortgage Servicing, and Idea Law Group PC as Substitute Trustee

NOTICE: Defective

RELIEF REQUESTED: Petitioner seeks an order requiring Respondents to execute and record a full reconveyance of the subject deed of trust and authorizing the Court Clerk to execute the reconveyance if Respondents fail to comply.

RULING: Continued to October 26, 2026, at 8:30 a.m.

BACKGROUND

On June 11, 2026, Satenik Nshanyan, Trustee of the Nshanyan Living Revocable Trust (Petitioner), filed a petition against Premier America Credit Union, Dovenmuehle Mortgage Servicing, and Idea Law Group PC as Substitute Trustee (collectively, Respondents). On June 16, 2026, the Court vacated the Case Management Conference and set the petition for hearing on August 6, 2026. On July 21, 2026, Petitioner filed three proofs of service by mail. No opposition has been filed.

DISCUSSION

Except as otherwise provided by statute, a court acquires jurisdiction over a party upon service of summons. A general appearance is equivalent to service of summons. (Code Civ. Proc., § 410.50, subd. (a).) A summons must be served in a manner authorized by law. (Code Civ. Proc., §§ 412.20, 413.10.) Ordinary service by mail is not sufficient to establish service of summons. Service by mail under Code of Civil Procedure section 415.30 requires the recipient to execute and return an acknowledgment of receipt.

Here, the petition is the initiating pleading in this action. It seeks affirmative relief compelling Respondents to execute and record a reconveyance and affecting their interests in the subject deed of trust. Although the pleading is denominated a petition, Civil Code section 2941 does not appear to establish a special judicial proceeding or an alternative method of service. Accordingly, in the absence of a general appearance, the Court cannot grant binding relief against Respondents without service of summons.

The proofs filed on July 21, 2026, do not establish such service. Each proof uses form POS-040, which expressly states that it may not be used to prove service of a summons and complaint. The documents listed as served include the petition, Civil Case Cover Sheet, supporting declaration and exhibits, and proposed order. They do not include a summons or notice of the August 6, 2026 hearing. The register does not show that a summons was issued or served. Respondents have not appeared.

The Court therefore cannot grant the requested relief on the present record. The hearing is continued to permit Petitioner to obtain issuance of a summons, complete service on each Respondent, and provide Respondents with notice and an opportunity to respond.

CONCLUSION

The hearing is continued to October 26, 2026, at 8:30 a.m.

Petitioner shall obtain issuance of a summons and complete service on each Respondent of the summons, petition, all supporting papers, a copy of this ruling, and notice of the continued hearing no later than September 4, 2026. Service shall be completed in a manner authorized for service of summons. Petitioner shall file proofs of completed service no later than September 11, 2026.

Petitioner shall file and serve a supplemental memorandum no later than September 18, 2026, identifying the legal authority permitting the requested relief to be adjudicated through this petition and addressing whether the evidence establishes that the obligation secured by the deed of trust has been satisfied.

Any response or opposition shall be filed and served no later than October 9, 2026. Any reply shall be filed and served no later than October 15, 2026.